

		elder abuse claim remaining from the December 12, 2018 First Amended Petition may be transferred to Unlimited Civil for resolution.” (ROA 404.) This case has been with the probate court for over eight years. Given its lengthy and convoluted history, as well as the closely related nature of all claims presented in the First Amended Petition, the court finds the probate court is best suited to handle the pre-trial litigation of the financial elder abuse cause of action. The court would only be inclined to transfer the elder abuse cause of action to the <i>civil panel</i> in the event that the probate court is unable to accommodate Petitioner’s right to a jury trial. While the courtrooms at the Costa Mesa Justice Complex are not designed to hold a jury trial due to the lack of a jury box, it is certainly feasible, and easily doable, for the probate court to conduct the trial in one of the many other courthouses of the Orange County Superior Court where courtrooms are designed to conduct a jury trial. At this juncture, the cause of action for financial elder abuse is still at the pleading stage and has, thus far, only been challenged as to the issue of standing. Thus, it remains to be seen whether the cause of action for financial elder abuse will proceed to trial at all. Based on the foregoing, the motion to transfer this case to the civil panel is DENIED without prejudice. Counsel for Respondent is ordered to give notice of this ruling.
2	Cordova-Trust	TENTATIVE RULING <u>Case:</u> Cordova - Trust 00984697 <u>Date:</u> June 3, 2026 MOTION FOR SUMMARY JUDGMENT (ROA 2708) Respondent Matthew Cordova (“Respondent” and/or “Matthew”) moves for summary judgment, or in the alternative summary adjudication, on two causes of action in the First Amended Petition for Instructions (“FAP”) (ROA 135) filed on December 12, 2018, by Petitioner Mark Cordova (“Petitioner” and/or “Mark”). Specifically, Respondent seeks summary judgment or adjudication as to the causes of action for (1) Financial Elder Abuse, and (2) Breach of Fiduciary Duty. Respondent’s request for judicial notice (ROA 2702) is GRANTED as to Exhibits 1-6. While the court takes judicial notice of these exhibits, the court does not take judicial notice of the truths asserted within those exhibits. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCourt</i> (2001) 91 Cal. App. 4th 875, 882; <i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal. App. 4th 1366, 1375; Evid. Code, §§ 452, subd. (d)(l), (c), (h), 453; <i>Fontenot v. Wells Fargo Bank, N.A.</i> (2011) 198 Cal. App. 4th 256, 264-265; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal. App. 4th 471, 482.) Respondent’s sole argument as to each cause of action is that Petitioner lacks standing to assert them on behalf of Rachel Cordova (“Rachel”). Many of the individuals involved in this case share a surname. For clarity, the court will use

first names without intending any disrespect. (*Morgan v. Superior Court* (2018) 23 Cal. App. 5th 1026. fn.1)

This matter initially came before the court on March 13, 2026, with the court issuing a tentative ruling. After hearing oral argument, the court continued the motion for further briefing. Petitioner filed his supplemental opposition on March 25, 2026. (ROA 2836.) Respondent filed a response thereto on April 7, 2026. (ROA 2834.)

After reviewing the court-authorized supplemental briefing, the court issued a minute order on April 15, 2026, indicating that “the court intends to issue a new/revised tentative ruling on June 2, 2026,” and that the court also intends to “give the parties an opportunity to present additional oral arguments on Wednesday, June 3, 2026.” (ROA 2843.)

Having now considered the initial moving, opposing, and reply papers; the oral argument of counsel; and the parties’ supplemental briefs, the court now rules as follows.

Financial Elder Abuse

In his supplemental opposition (ROA 2836, page 20, lines 18-20), Petitioner argues for the first time, nonetheless persuasively, that the court-ordered stay of the cause of action for financial elder abuse is “technically still in effect,” and that Petitioner “cannot be faulted for failing to amend the elder abuse claim in his complaint when that claim was subject to a Court imposed stay. (*Id.*, at lines 21-22.)

The court’s order staying the elder abuse action, issued on June 5, 2019, by the Honorable (now retired) Judge Belz, states that the elder abuse action was stayed pending the conclusion of other matters: “All litigation on the **elder abuse cause of action** contained in Mark’s First Amended Petition filed 12/12/18, pending judgment or dismissal of the **other causes of action** in the 12/12/18 First Amended Petition is **stayed** pending the conclusion of the **other matters**. ... The Court **stays** the elder abuse claim on the December 12, 2018 First Amended Petition until such time as the **other claims** in that petition have been resolved by judgment or dismissal.” (ROA 404. Emphasis added.)

The June 5, 2019, court order does not specify what “other matters” or “other claims” were to precede the elder abuse action, nor does it specifically state that “all” other claims/matters were to be resolved before the stay could be lifted.

Both parties have proceeded to litigate the merits of the elder abuse action through this dispositive motion without regard to the stay, leading this court to believe that both parties understood the stay would be lifted after the first trial.

Regardless, based on the totality of the record presented, in the interest of justice, and consistent with this trial court’s inherent and statutory discretion to control the proceedings to ensure the effective administration of justice (*People v. Gonzalez* (2006) 38 Cal. 4th 932, 951: “trial court has inherent as well as statutory discretion to control the proceedings to ensure the efficacious administration of justice”), this court now finds good cause to **lift the stay** and proceeds to rule on the motion for summary adjudication as to the cause of action for financial elder abuse.

		The court’s initial tentative ruling was to grant the motion for summary adjudication as to the cause of action for financial elder abuse on the ground that Petitioner lacked standing at the time he filed the FAP. In its initial tentative ruling, the court cited to footnote 6 of <i>Coral Construction, Inc. v. City and County of San Francisco</i> (2004) 116 Cal. App. 4th 6, 12 (“<i>Coral Construction</i>”), for the proposition that a defect in standing that exists at the time the pleading is filed cannot be cured by post-filing events. Both orally and in his supplemental briefing, Petitioner argued that the footnote in <i>Coral Construction</i> is <i>dicta</i> and that such rule only applies to Article III standing in federal cases. The court is not fully persuaded that footnote 6 in <i>Coral Construction</i> consists of <i>dicta</i>, as it raises an issue regarding standing that the court ultimately resolves. Moreover, while the court is not bound by <i>dicta</i>, it is not prohibited from relying on <i>dicta</i> as persuasive authority. Nonetheless, upon review of the pertinent case law and further consideration of Petitioner’s argument, the court is persuaded that <i>Coral Construction</i> appears to be in the minority with regard to its position that post-filing events cannot cure a lack of standing at the time of filing. In <i>Branick v. Downey Savings & Loan Assn.</i> (2006) 39 Cal. 4th 235, a case relied upon by Petitioner, a plaintiff with standing was substituted in for a plaintiff without standing. Such event did not “cure” the initial plaintiff’s lack of standing and, therefore, is inapplicable to the issue before this court. Petitioner also relies on <i>Coats v. K-Mart Corp.</i> (1989) 215 Cal. App. 3rd 961 (“<i>Coats</i>”). In <i>Coats</i>, a mother filed a wrongful death action as administrator of her daughter’s estate, knowing that she had not been appointed as administrator. After she was appointed administrator, the trial court deemed her Complaint filed as of the date of her appointment. The issue before the appellate court was whether the Relation Back Doctrine applied. The Court of Appeal found that it did not apply. Thus, the order deeming the Complaint filed as of the date the mother was appointed as administrator rendered the Complaint untimely. Arguably the post-filing event of having the Complaint deemed filed as of the date of mother’s appointment as administrator would have cured the mother’s standing had it been timely. However, such issue was not directly before the court in <i>Coats</i>. The other cases relied on by Petitioner (i.e., <i>River’s Side at Washington Square Homeowner’s Assoc. v. Superior Court</i> (2023) 88 Cal. App. 5th 1209; <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal. App. 4th 995; <i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal. App. 5th 677) permitted leave to amend the subject pleading to allege standing based on post-filing events. These cases dealt with demurrers or motions for judgment on the pleadings, not with a motion for summary judgment or adjudication. Nonetheless, Petitioner correctly states that when a pleading is defective but capable of amendment, the court can treat a motion for summary judgment as a motion for judgment on the pleadings and grant leave to amend. (<i>Prue v. Brady Co./San Diego, Inc.</i> (2015) 242 Cal. App. 4th 1367,1384.) Petitioner argues that he should be given leave to amend his cause of action for financial elder abuse to allege standing as an interested person under Welfare and Institutions Code section 15657.3(d) since Rachel has passed away.
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	Respondent argues that, even if granted leave to amend, Petitioner cannot establish standing as an interested person because any damages recovered in connection with the cause of action would go to the Survivor’s Trust, and the court has already determined that Mark is not a beneficiary of the Survivor’s Trust. Petitioner counters that he does have an interest in any damages allocated to the Survivor’s Trust because the assets in the Survivor’s Trust “flow into the Family Trust,” and Petitioner is a beneficiary of the Family Trust. (ROA 2789, Petitioner’s Separate Statement, Additional Undisputed Material Fact Nos. 9 and 10.) Respondent disputes these allegations but does not provide any evidence in his separate statement to the contrary. On the record presented, the court finds that these remain triable issues of fact. Accordingly, the court concludes that if Petitioner can amend the FAP to allege sufficient facts to demonstrate that he has a beneficial interest in the outcome of the cause of action for financial elder abuse, then he may establish standing as an interested person. To be abundantly clear, the court makes no finding here as to whether the FAP is capable of such amendment. The court only finds that there is no evidence that the FAP is incapable of such amendment. Based on the foregoing, the court reverses its initial tentative ruling as to the cause of action for financial elder abuse. With regard to the motion for summary adjudication on the cause of action for financial elder abuse, the court exercises its discretion to treat the motion as a motion for judgment on the pleadings and GRANTS THE MOTION WITH LEAVE TO AMEND. Petitioner has leave to amend for the limited purpose of alleging standing under Welfare and Institutions Code section 15657.3(d). <u>Breach of Fiduciary Duty</u> The court notes at the onset that there appears to be more than one cause of action for breach of fiduciary duty in the FAP. The FAP states the following in heading “E” under section IV entitled “Petition for Relief”: Removal of MATTHEW CORDOVA as Co-Trustee for Breach of Trust, and Removal as Agent-in-Fact for RACHEL CORDOVA Under Power of Attorney and Advance Medical Directive, for Breach of Fiduciary Duty and Lack of Capacity by RACHEL CORDOVA. INVALIDATION OF ALL NEWLY EXECUTED POWERS OF ATTORNEY AND NEW ESTATE PLANNING DOCUMENTS DUE TO UNDUE INFLUENCE AND LACK OF CAPACITY OF RACHEL CORDOVA. There are at least five (5) potential causes of action in that heading: 1. Breach of Trust; 2. Breach of Fiduciary Duty as Agent-in-Fact; 3. Breach of Fiduciary Duty as Power of Attorney under Advance Medical Directive; 4. Invalidity of
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		Estate Planning Documents Due to Lack of Capacity; and 5. Invalidity of Estate Planning Documents Due to Undue Influence. Additionally, the body of the FAP under this heading discusses a breach of fiduciary duty as Trustee (which differs from a cause of action for breach of Trust). The Phase One trial only resolved potential causes of action Nos. 4 and 5, namely, the Invalidity of Estate Planning Documents Due to Lack of Capacity, and the Invalidity of Estate Planning Documents Due to Undue Influence. The crux of Respondent’s motion for summary judgment/adjudication as to a cause of action for breach of fiduciary duty is that Petitioner does not have standing to bring any cause of action on behalf of Rachel because he is not an interested person under Probate Code section 48. However, Probate Code section 48 is not applicable to a cause of action for breach of fiduciary duty under Probate Code sections 4541 (re Power of Attorney) and 4766 (re Power of Attorney under Advance Health Care Directive). In the recent case of <i>Estate of Tarlow</i> (2025) 109 Cal. App. 5th 124, a petition was filed pursuant to Probate Code section 11700. Relying on Probate Code section 48, the respondents argued that the petitioner lacked standing because he had no pecuniary interest in the outcome. The trial court agreed and sustained demurrer twice, the second time without leave to amend. The appellate court reversed. It held that Probate Code section 48 is a <i>definitional provision</i> defining the term <i>interested person</i>, and it does not apply where the term is not used in a statute: “section 48 is a definitional provision that gives the meaning of the term “interested person.” This term does not appear in section 11700, and therefore section 48 does not apply.” (<i>Id.</i>, at p. 131.) The FAP specifically cites to Probate Code sections 4541 and 4766 as a basis for Petitioner’s claims of breach of fiduciary duty as Attorney-in-Fact and Power of Attorney under Advance Health Care Directive. A relative of the principal has standing to petition under Probate Code sections 4541 and 4766. (Prob. Code § 4540(d), 4765(c).) Certainly, there are exceptions to this theory of standing. However, Petitioner’s Separate Statement of Undisputed Material Facts does not present any facts or evidence relevant to Petitioner’s standing to bring an action under Probate Code sections 4541 or 4766. Abby Thus, Respondent has not met his burden of showing there are no triable issues of material fact as to Petitioner’s standing to sue Respondent on behalf of Rachel for breach of fiduciary duty under Probate Code sections 4541 and 4766. With regard to a cause of action for breach of fiduciary duty as a trustee, the court agrees that Petitioner cannot bring such action on behalf of Rachel, as he is not a real party in interest. (Code Civ. Proc. § 367.) Nonetheless, Respondent’s Separate Statement of Undisputed Material Facts neglects to set forth evidence regarding Petitioner’s standing to sue for breach of fiduciary duties owed to Petitioner under any other sub-trust. Thus, Respondent has not met his burden of showing there are no triable issues of material fact as to Petitioner’s standing to sue Respondent for breach of fiduciary duties owed to Petitioner.
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